

STATE OF NEW YORK

8779--B

2025-2026 Regular Sessions

IN ASSEMBLY

June 2, 2025

Introduced by M. of A. ROZIC, SEAWRIGHT, LEVENBERG -- read once and referred to the Committee on Consumer Affairs and Protection -- recommitted to the Committee on Consumer Affairs and Protection in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Consumer Affairs and Protection in accordance with Assembly Rule 3, sec. 2 -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to restricting the use of automatic license plate reader information

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section
2 394-j to read as follows:

3 § 394-j. Policy for the use of automatic license plate reader systems.
4 1. As used in this section, the following words and phrases shall have
5 the following meanings:

6 (a) "Automatic license plate reader system" shall mean a system of one
7 or more mobile or fixed high-speed cameras used in combination with
8 computer algorithms to convert images of license plates into computer-
9 readable data. "Automated license plate reader system" shall include but
10 not be limited to such systems that are subject to multi-agency or
11 vendor agreements that allow the sharing of automatic license plate
12 reader information collected in New York.

13 (b) "Captured plate data" shall mean the GPS coordinates, date and
14 time, photograph, license plate number, and any other data captured by
15 or derived from an automatic license plate reader system.

16 (c) "Automatic license plate reader user" means a person or entity
17 that owns or operates an automatic license plate reader device.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (d) "Law enforcement agency" means: (i) a law enforcement agency as
2 defined in subdivision eight of section eighty-six of the public offi-
3 cers law; (ii) any private investigator, security guard, or watch,
4 guard, or patrol agency licensed pursuant to section seventy-one of this
5 chapter; and (iii) any private entity charged with the enforcement of
6 state, county, or municipal laws or with managing custody of detained
7 persons in any state or jurisdiction.

8 2. (a) An automatic license plate reader user shall not sell, share,
9 allow access to, or transfer captured plate data to any state or local
10 jurisdiction for the purpose of investigating or enforcing a law that
11 denies or interferes with a person's right to choose or obtain reproduc-
12 tive health care services or any lawful health care services.

13 (b) Any automatic license plate reader user in this state, including
14 any law enforcement agency of this state that uses automatic license
15 plate reader systems, shall not share automatic license plate reader
16 information with an out-of-state law enforcement agency without first
17 obtaining a written declaration from the out-of-state law enforcement
18 agency that it expressly affirms that the captured plate data obtained
19 shall not be used in a manner that violates paragraph (a) of this subdi-
20 vision. If a written declaration of affirmation is not executed, the law
21 enforcement agency shall not share the captured plate data with the
22 out-of-state law enforcement agency.

23 (c) Captured plate data shall be maintained confidentially to the
24 fullest extent permitted by law.

25 3. The provisions of this section shall not apply to an electronic
26 toll collection system or associated transaction system or any component
27 thereof which is operated by a public authority for the purpose of
28 imposing and collecting tolls on a roadway within the state.

29 § 2. This act shall take effect on the thirtieth day after it shall
30 have become a law.